MIMS EMPOWERING HEALTHCARE COMMUNITIES

VENDOR GENERAL TERMS AND CONDITIONS ("GTCs")

1. FORMATION OF CONTRACT. These GTCs, electronically published at https://corporate.mims.com/resource_vendor and amended from time to time, shall apply to and form an integral part of all the purchase orders ("PO") issued by MIMS or any associated company within MIMS group of companies. The PO constitutes an offer by MIMS to purchase Goods or Services or Goods and Services from the Vendor in accordance with these GTCs. The PO shall be deemed accepted by the Vendor unless the Vendor expressly rejects the PO in writing to MIMS. MIMS expressly rejects applicability of any other terms and conditions or stipulations by the Vendor in any documents, even if it is referred to, attached or signed. Any shrink-wrap, click-wrap or click-through software licence terms shall not apply to any software supplied by the Vendor under any circumstances, regardless of whether such terms are presented or accepted during installation or use of Deliverables unless otherwise agreed by MIMS.

2. DEFINITIONS. In these GTCs, the following words and expressions shall have the following meanings, save where the context otherwise requires:
"Agreement" means the PO and these GTCs; and/or any addendum or variations expressly agreed by both parties;
"Fees" means the price of the Goods or the charges of the Services as set out in the PO;
"Goods" means such goods to be supplied to MIMS by the Vendor as specified in the PO, and any related materials, component part(s), packaging and labelling of such goods, and documentation;
"Intellectual Property" means patents (including patent applications, reissues, divisions, continuations and extensions), utility models, rights to inventions, copyrights, trade secrets, trademarks, service marks, mask work rights, business names and domain names, know-hows, database rights and other rights in the nature of intellectual property rights (whether registered or not) and all applications for the same which may now, or in the future, subsist anywhere in the world, including the right to sue for and recover damages for past infringements;
"MIMS" means the MIMS entity referred to in the Agreement;
"MIMS Materials" means materials, equipment, tools and/or data supplied by MIMS
"PO" means the purchase order provided by MIMS to Vendor;
"Services" means the services, including documents, work products, reports and other materials or items of any kind (including drafts) developed, provided or to be provided by Vendor to MIMS under the PO or Agreement;
"Vendor" means the service provider, consultant, contractor, agent or any relevant third party who are engaged by MIMS to provide the Services and/or Goods; and
"Warranty Period" means in respect of Goods, the longer of: (i) the express written warranty period provided by the Vendor for the Goods; or (ii) the period commencing on the date of acceptance of such Goods and ending on the date that is provided by Vendor in respect of the Goods; or (iii) the agreed period as set out in the PO.

3. ORDER OF PRECEDENCE. In the event and to the extent only of any conflict between any provisions of these GTCs, PO or the written contract between parties, the conflict shall be resolved in accordance with the following order of precedence:
(a) the formal contract executed between the parties;
(b) the PO;
(c) these GTCs; and
(d) any addendum or variations expressly agreed by both parties.
Where any of the above documents contain provisions which are more favourable to MIMS in relation to the rest of the documents, such provisions shall prevail. MIMS shall in its absolute and sole discretion determine whether any provisions are more favourable to it in relation to the Agreement.

4. TERM. The Services shall commence at the earlier of (a) date set out in the PO; or (b) any act by the Vendor consistent with fulfilling the PO and shall be completed in accordance with the period stated in the PO. In the event that MIMS requests additional services and/or an extension of time, the scope of Services and duration of the PO may be amended by mutual agreement in the form of a change order or addendum to the Agreement.

5. NON-EXCLUSIVITY AND MINIMUM VOLUME.
5.1 Unless expressly agreed by MIMS, the Agreement does not operate to:
(a) restrict MIMS from purchasing Goods or Services which are the same as or similar to the Goods or Services or any volume of Goods and Services, from any other source; or
(b) oblige MIMS to purchase any Goods or Services or any volume of Goods or Services from the Vendor other than as set out in the PO.

6. SUPPLY OF SERVICES.
6.1 The Vendor shall provide independent Services to MIMS, fulfil all aspects of the Services in the agreed format(s) and deliver all Services as specified in the PO.
6.2 The Vendor shall meet any performance dates or delivery schedule or timeline for the Services as specified in the PO or as notified by MIMS. Time is of the essence in relation to any of those dates.
6.3 In providing the Services, the Vendor shall:
(a) co-operate with MIMS in all matters relating to the Services and shall comply with reasonable directions of MIMS;
(b) perform the Services with the best care, skill and diligence according to the highest standards in the industry for similar services;
(c) use appropriately qualified and skilled personnel to provide the Services. In this regard, MIMS may, at its reasonable discretion, require Vendor to substitute or replace any of the Vendor's personnel if MIMS determine that such personnel are not skilled or qualified or breaches any of the terms in the Agreement. Any replacement of personnel shall not waive or diminish Vendor's obligations to meet any due date for the performance of the Services;
(d) ensure that the Services will conform with all the description, standards and specifications set out in the PO and that the Services shall be fit for the intended purpose;
(e) ensure that all its personnel comply with all measures implemented by MIMS including without limitation, professional ethics, rules and regulations of MIMS regarding security, safety, health and professional conduct applicable to its employees and premises;
(f) obtain and at all times maintain all licences and consents which may be required for the provision of the Services; and
(g) hold MIMS Materials pursuant to the performance of the Services in safe custody at its risk and shall maintain such MIMS Materials in good condition until returned to MIMS. Vendor shall not dispose of or use MIMS Materials other than in accordance with MIMS's written instructions.

7. SUPPLY OF GOODS.
7.1 In the event the Vendor supplies Goods to MIMS, the Vendor shall ensure that the Goods:
(a) corresponds with the description and any applicable Goods specifications;
(b) shall be delivered by the delivery date at the delivery location as set out in the PO during business hours unless otherwise notified by MIMS;
(c) are new, of satisfactory quality and fit for purpose, express or implied, and in this respect, MIMS relies on the Vendor's skill and judgment;
(d) are free from defects in design, material and workmanship and shall remain so for the entire Warranty Period;
(e) comply with all applicable legal, statutory and regulatory requirements relating to the manufacture, labelling, packaging, storage, handling and delivery of the Goods;
(f) are free from any charge, lien, liability and encumbrances of any kind.
7.2 The Vendor shall ensure that it has and at all times maintains all the licences, permissions, authorizations, consents and permits that it needs to carry out its obligations under the Agreement in respect of the Goods.
7.3 The Vendor shall, at its own expense, pack, load and deliver the Goods to the agreed delivery point. MIMS shall not be liable for any charges of freight, transportation, insurance, shipping, storage, handling, packaging or other similar charges unless provided for in the PO.
7.4 Where any access to MIMS premises is necessary in connection with the delivery of the Goods, the Vendor shall ensure all its personnel comply with all measures implemented by MIMS including without limitation, professional ethics, rules and regulations of MIMS regarding security, safety, health and professional conduct applicable to its employees and premises.

8. DELIVERY OF GOODS.
8.1 The Vendor shall ensure that:
(a) the Goods are properly packed and secured as to enable the Goods to reach their destination in good condition;
(b) each delivery of Goods shall be accompanied by a delivery note that clearly shows the following:- (i) date of the PO; (ii) the PO number (if any); (iii) the type, description and quantity of the Goods; (iv) any special instructions with respect to the Goods; and (v) if the Goods are being delivered by batches or instalments, the outstanding balance of Goods remaining to be delivered.
8.2 Property and risk of loss or damage to the Goods shall only pass to MIMS upon receipt and sign-off of the Goods at the agreed delivery point, and MIMS has no obligations to obtain insurance while the Goods are in transit from the Vendor's location to the delivery point.
8.3 The Vendor shall not substitute or supply equivalent or similar Goods except with the prior written approval of MIMS.

9. INSPECTION, ACCEPTANCE AND REJECTION (IF APPLICABLE).
9.1 Where applicable, MIMS shall have fourteen (14) business days or any specified date set out in the PO ("Inspection Period") following the delivery of the Goods or Services to undertake any such inspection it deems fit. Upon such inspection, MIMS shall either accept or reject the Goods or Services within the said Inspection Period.
9.2 MIMS shall have the right to reject any Goods or Services which are not in

conformance with the agreed specifications or any terms of the PO and/or any damaged or defective Goods or Services. For avoidance of doubt, the transfer of title of the Goods shall not constitute MIMS's acceptance of the said Goods.

9.3 MIMS's inspection, testing or acceptance or use of the Goods or Services shall not limit or otherwise affect the Vendor's warranty obligations, and such warranties shall survive the terms of the Agreement.

10. MIMS REMEDIES.

10.1 If the Vendor fails to deliver the Goods on the agreed delivery date or fails to perform the Services in accordance with the agreed timeline, MIMS shall, without limiting or affecting MIMS's rights and remedies available in law and equity, have any one or more of the following rights and remedies:

(a) to seek full credit or refund of all amounts paid by MIMS to the Vendor for the Goods or Services;
(b) to recover from the Vendor any costs incurred by MIMS in obtaining substitute Goods or Services from a third party;
(c) to refuse to accept any subsequent performance of the Services or delivery of the Goods which the Vendor attempts to make;
(d) to terminate the Agreement and seek for full refund from the Vendor; and/or
(e) to claim damages for any additional costs, loss or expenses incurred by MIMS.

10.2 If the Vendor has delivered Goods that do not comply with the agreed specifications in the PO or undertakings and warranties in the Agreement, MIMS shall, without limiting or affecting MIMS's rights and remedies available in law and equity, have any one or more of the following rights and remedies:

(a) to reject the Goods (in whole or in part) whether or not title has passed and to return the Goods to the Vendor at the Vendor's own risk and expenses;
(b) to terminate the Agreement with immediate effect by giving written notice to the Vendor;
(c) to require the Vendor to repair or replace the rejected Good within the time period as specified by MIMS with no additional costs to MIMS;
(d) to seek for full refund of the price of the rejected Goods, if it has been paid;
(e) to refuse to accept any subsequent delivery of the Goods which the Vendor may attempt to make;
(f) to recover from the Vendor any costs or expenses incurred by MIMS in obtaining substitute Goods from a third party; and
(g) to claim damages for any additional costs, loss or expenses incurred by MIMS.

10.3 Property and risk in the Goods which are rejected and returned to the Vendor shall transfer back to the Vendor upon MIMS's rejection and such rejected Goods shall not be replaced except upon written instructions from MIMS.

10.4 If the Vendor has provided the Services that do not comply with the agreed specifications in the PO or undertakings and warranties in the Agreement, MIMS shall, without limiting or affecting MIMS's rights and remedies available in law and equity, have any one or more of the following rights and remedies:

(a) to terminate the Agreement with immediate effect by giving written notice to the Vendor;
(b) to require the Vendor to re-perform the Services within the time period as specified by MIMS with no additional costs to MIMS;
(c) to seek for full refund of the price of the rejected Services, if it has been paid;
(d) to refuse to accept any subsequent performance of the Services which the Vendor may attempt to make;
(e) to recover from the Vendor any costs or expenses incurred by MIMS in obtaining substitute Services from a third party; and/or
(f) to claim damages for any additional costs, loss or expenses incurred by MIMS.

10.5 The conditions set out in this Clause 10 shall extend to any substituted or remedial Services or repaired or replacement of Goods supplied by the Vendor.

10.6 Acceptance of the Goods or Services does not waive the Vendor's obligations relating to warranties or other continuing obligations under this Agreement.

10.7 MIMS's rights and remedies under the Agreement are in addition to, and not exclusive of, any rights and remedies implied by statute and common law.

11. LIQUIDATED DAMAGES FOR DELAY.

11.1 Notwithstanding MIMS's rights and remedies available under the Agreement and at law, if the Vendor fails to meet any delivery date or completion date (including any extension expressly granted by MIMS), MIMS may, at its sole discretion, claim or deduct 0.5%of the total Fees of the PO for each week delay in the delivery of Goods or performance of the Services (as the case may be), by way of liquidated damages, until the earlier of delivery of the Goods or performance of the Services (as the case may be) or termination of the Agreement by MIMS, up to a maximum of 10% of the total Fees of the PO.

11.2 Parties agree that these liquidated damages are a genuine pre-estimate of loss and not a penalty.

12. REPRESENTATIONS AND WARRANTIES. The Vendor warrants, represents and agrees that:

(a) it has the full capacity and authority to enter into this Agreement;
(b) it is validly existing under the laws of its place of incorporation and has the power and authority to carry on its business as that business is now being conducted;
(c) the execution and delivery of this Agreement have been properly authorized;
(d) materials and/or information provided by Vendor are updated, complete, true and all information is accurate in all material aspects;
(e) the Services and/or Goods shall not infringe or violate any Intellectual Property rights of any person or third party;
(f) the Services and/or Goods shall be fit for purpose which it was intended and shall be free from defects and workmanship;
(g) it shall hold and maintain all certifications, permissions, licenses, rights, titles, consent and other approvals required or necessary to lawfully provide the Services or Goods to MIMS;
(h) it will comply with all applicable laws, statutes, ordinances, rules and regulations and MIMS's policies;
(i) it is a qualified, experienced and skilled service provider with the necessary resources, capacity and technical expertise to perform its obligations under the Agreement, in line with the current and evolving best industry practices;
(j) it shall be fully responsible and liable for the conduct of its employees, agents, subcontractors including without limitation their acts of negligence, criminal acts, fraudulent acts, defaults or omissions and for any injuries sustained by any of its employees or third party during the performance of the Services or delivery of the Goods;
(k) it will exercise due care to avoid unreasonable interference with or damage to any existing facilities, sites or MIMS's premises during the performance of Services;
(l) it will minimize any disruption to MIMS's operations when performing the Services, except for any agreed scheduled disruptions;
(m) it shall maintain valid insurance policies, with a reputable insurance company, professional indemnity insurance and public liability insurance; and
(n) all the Services and/or Goods are free of any charge, lien liability or encumbrances of every kind, nature and character whatsoever and MIMS shall have worldwide and perpetual right to use, distribute or disclose such Services and/or Goods at no additional costs.

13. INDEMNIFICATION. Vendor shall fully indemnify and hold harmless MIMS and its affiliated companies and their shareholders, directors, officers, employees, licensees, against and from any and all costs, losses, claims, damages, expenses, penalties, fines, actions, demands, suits and/or proceedings incurred or suffered by MIMS (including, without limitation, attorneys' fees on full indemnity basis) which arises out of or in connection with (a) the Vendor's or its employees' act, omission, negligence, default, non-compliance, misconduct or breach of the Agreement; or (b) any infringement or claim of infringement of third party rights. In such claims, demands, actions or proceedings, the Vendor shall not enter into any settlement, make any admission, or waive any available defences without MIMS's prior written consent. The indemnity obligation shall survive the expiry or termination of the Agreement.

14. INTELLECTUAL PROPERTY. Intellectual Property rights in any Services or Goods, including any Intellectual Property rights created, conceived and/or customized for MIMS by the Vendor or its subcontractors pursuant to the PO shall belong to and be vested in MIMS on its creation without restrictions and conditions. MIMS grants the Vendor a fully paid-up, worldwide, non-exclusive, royalty-free, non-transferable licence to use MIMS's Intellectual Property or materials for the term of the Agreement for the sole purpose of providing the Services to MIMS in accordance with the Agreement.

15. FEES AND PAYMENT.

15.1 The Fees for Goods shall be as set out in the PO and include all and any incidental costs and expenses including without limitation freight, transportation, insurance, shipping, storage, handling, and packaging costs. No extra fees shall be effective unless agreed and approved in writing by MIMS.

15.2 The Fees for Services shall be as set out in the PO and shall be the full and exclusive remuneration of the Vendor in respect of the performance of the Services. Unless agreed otherwise in writing by MIMS, the Fees shall include all costs and expenses of the Vendor directly or indirectly incurred in connection with the performance of the Services.

15.3 Each invoice shall include supporting information required or requested by MIMS to verify the accuracy of the invoice, including the Vendor's tax registration number and the relevant PO number.

15.4 Subject to receipt of a valid and undisputed invoice from the Vendor, MIMS shall pay the agreed Fees as set out in the PO within the due date as specified in the invoice.

16. TAXES. Unless otherwise specified in the PO, **t**he Fees payable under the Agreement are exclusive of any applicable taxes, duties, levies, GST, VAT, sales tax, service tax or similar taxes. Such taxes shall be borne by the recipient and paid in addition to the fees, where required by law. Where any withholding tax is required by law, the payer shall be entitled to make the deduction and remit the amount to the relevant tax authority, provided that official evidence of such remittance, including any withholding tax certificate, receipt, or equivalent supporting documentation, is supplied to the payee. The payer shall also furnish any documents reasonably required by the payee to support the application of a reduced withholding tax rate, tax treaty benefits, exemptions, or foreign tax credit claims. Each party shall be responsible for its own income and corporate taxes.

17. LIMITATION OF LIABILITY.

17.1 Notwithstanding any other provision herein, MIMS shall not be liable to the Vendor, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, for any loss of profit, or for any indirect or consequential

loss arising under or in connection with the Agreement.

17.2 Notwithstanding anything else contained in the Agreement to the contrary, MIMS's total liability to Vendor, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, arising under or in connection with the Agreement shall be limited to the Fees paid by MIMS to the Vendor for the PO giving rise to such liability.

18. TERMINATION.

18.1 Without affecting any other right or remedy available to MIMS, MIMS may terminate the Agreement:

(a) at any time by giving the Vendor fifteen (15) days' written notice to the Vendor;

(b) with immediate effect by giving written notice to the Vendor if

i. there is a change of control of the Vendor; or

ii. the Vendor breaches the terms of the Agreement and fails to cure any breaches within seven (7) business days after it receives notice from MIMS with no further liability for any fees to be paid to the Vendor.

18.2 MIMS may terminate the Agreement immediately for cause by giving written notice to the Vendor in the event the Vendor: (a) becomes insolvent or bankrupt; (b) suspends or ceases, or threatens to suspend or cease, to carry on all or a substantial part of its business.

18.3 Notwithstanding anything to the contrary, the provisions of all clauses relating to the Vendor's warranties, confidentiality, data protection, indemnity, liability, termination, and publicity shall survive the termination of this Agreement and shall continue to have full force and effect.

19. CONSEQUENCES OF TERMINATION

19.1 Upon the expiry or termination of the Agreement, the Vendor shall immediately return to MIMS any documents, computer disks, masters, tapes or other material in the Vendor's possession containing MIMS confidential information and MIMS Materials (whether drafts or work in progress) at its own costs and immediately cease using all such MIMS's confidential information and MIMS Materials. If the Vendor fails to do so, MIMS reserves its rights to enter the Vendor's premises and take possession of them.

19.2 Where required by MIMS, the Vendor shall provide to MIMS a written undertaking confirming that it has fully complied with the foregoing clause and that it is not in possession or control of MIMS's confidential information and MIMS Materials.

20. PUBLICITY. Without the prior written consent of MIMS, the Vendor agrees that it will not use the names, service marks or trademarks of MIMS or any of MIMS's affiliated companies or reveal the existence of this Agreement or its terms and conditions in any manner, including, but not limited to, any advertising, publicity release, press release, sales presentation, public statement, announcement or disclosure.

21. CONFIDENTIALITY. The Vendor acknowledges that all information received from MIMS, or which it may obtain by reason of its performance of the Services or provision of Goods, is confidential. The Vendor shall not use, divulge or communicate to any person (other than those approved by MIMS) any of the trade secrets or other confidential information of MIMS or its associated companies or its clients that the Vendor may from time to time receive or obtain during the period of its engagement.

22. PERSONAL DATA PROTECTION. Where the Vendor receives, processes and/or has access to any personal data from MIMS under the Agreement, the Vendor shall fully comply with the relevant applicable personal data protection laws, regulations and guidelines and shall process such personal data only as instructed by MIMS and strictly for the purpose of fulfilling its obligations under the Agreement. The obligations herein shall survive the termination or expiry of the Agreement.

23. ANTI-BRIBERY AND ANTI-CORRUPTION. Vendor shall comply with and ensure all its personnel comply with all applicable laws and regulations relating to anti-bribery and corruption. The Vendor shall take all measures to prevent corrupt practices, unfair means and illegal activities at all times throughout the term of the Agreement, including maintaining accurate books, records and accounts related to its activities and internal controls. Any breach of this clause shall be deemed a material breach of this Agreement and MIMS shall have the right to suspend any payment and immediately terminate the Agreement without any liability whatsoever.

24. AUDIT. MIMS or its appointed agent shall, at any time, be entitled to access the Vendor's books, records, accounts and premises of the Vendor to audit the Vendor's compliance with and performance of its obligations under the Agreement, including without limitation, the practices, procedures, systems and general controls relating to the Services. MIMS shall give a minimum of five (5) days written notice, and the Vendor shall comply with the reasonable requests to such audits**.** Each Party shall bear its own cost and expenses of the audit, unless the audit reveals or indicates a failure by the Vendor of its obligations under the Agreement, in which case the Vendor shall bear all costs and expenses.

25. FORCE MAJEURE. Neither party shall be liable to the other for any delay or failure in performing its obligations under the Agreement to the extent that such delay or failure is caused by an event or circumstance that is beyond the reasonable control of that party, without such party's fault or negligence, and which by its nature could not have been foreseen by such party ("Force Majeure Event"). Force Majeure Events include, but are not limited to, acts of God or the public enemy, government restrictions, floods, fire, earthquakes, explosion, epidemic, war, invasion, terrorist acts, riots, strike, or embargoes. The Vendor's economic hardship or changes in market conditions are not considered Force Majeure Events. The Vendor shall use all diligent efforts to end the failure or delay of its performance, ensure that the effects of any Force Majeure Event are minimized and resume performance under the Agreement. If a Force Majeure Event prevents the Vendor from performance for a continuous period of more than fifteen (15) business days, MIMS may terminate this Agreement by giving written notice to the Vendor.

26. GENERAL

26.1 Where a time period has been specifically provided for in the Agreement, the time period stated therein shall be of the essence.

26.2 Vendor shall not subcontract or assign all or part of the rights and obligations under this Agreement without the prior written consent of MIMS. Any consent from MIMS to such subcontracting shall in no way relieve the Vendor from its responsibilities under the Agreement. MIMS may assign any of its rights and obligations to any other party to the extent permitted by law.

26.3 Any notice, request, waiver, consent or any written communication ("Notice") between the parties shall be in English language and shall be sent by electronic mail or by post or by dispatch or by courier to the address (including electronic mail address) of the other party as set out in the PO or as may be notified to the other party in writing from time to time. Notice shall be deemed to have been duly given when it is delivered by hand or by prepaid registered post. Notice sent by electronic mail shall be deemed to have been received on the first (1st) business day after the electronic mail is sent. However, notice shall be deemed not to have been received if the sender receives, within 24 hours of sending such electronic mail, a notification that such electronic mail has not been successfully delivered.

26.4 This Agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous drafts, agreements, arrangements and understandings between them, whether written or oral, relating to its subject matter. No alteration to or variation of this Agreement shall take effect unless and until the same is in writing and signed on behalf of each of the parties by a duly authorized representative.

26.5 No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it preclude or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall preclude or restrict the further exercise of that or any other right or remedy.

26.6 The Agreement shall be governed by and construed in accordance with the laws of the country or state in which the MIMS entity that is party to the Agreement is domiciled, without regard to the choice of law principles. Vendor agrees that any legal action or proceedings arising out of or in connection with the Agreement shall be submitted to the exclusive jurisdiction of the courts of the country in which the MIMS entity that is party to the Agreement is domiciled.

26.7 These GTCs have been drawn up in English and where required by law in other languages. In the event of any differences in content, the English text shall govern.